

Magic PILs

A Patna High Court lawyer harnesses the power of public interest litigations to ensure justice is served and the government acts to implement court orders.



RAJAN RAH

M.P. GUPTA AT THE PATNA HIGH COURT

| By Amitabh Srivastava |

Except for his rather deep voice, Mahendra Prasad Gupta cuts an unexceptional figure. But this 55-year-old Patna High Court lawyer is a spirited justice seeker who has filed over 150 public interest litigations (PIL) in the Patna High Court, forcing the authorities to act on issues that had otherwise been swept under the carpet. "The PIL is a huge instrument of transformation, especially in a reluctant system like the one that exists in Bihar. I am glad to have used it to make a difference," Gupta says.

His efforts have paid off. It was a PIL he filed in 2003-04 seeking the status of over 58,000 absconders that made the authorities arrest the fugitives, including those who had filed election nominations. Similarly, another of his PILs forced the Bihar Police to chargesheet almost 600 policemen against whom criminal cases were registered but investigations had been pending for years. Even politicians who had conveniently forgotten to repay car advances taken from the state were reminded of their actions by his PIL. Right from holding the panchayat and the municipal elections to building over-bridges in

Patna, relocating an old bus-stand and making trucks halt outside city limits, it is Gupta's PILs that have made a difference. In fact, his efforts at highlighting and seeking redressal for genuine public grievances has won him appreciation from the judiciary.

But why does he do it? And doesn't he make enemies of powerful people? "There is indeed a private interest. I just cannot accept injustice against anyone. Lawyers are the eyes of the society, so why not me," says Gupta. In hindsight, his defiance and activism has also inured him to the vagaries of time. Some of his notable PILs include making the government commit to repaying investments lost to fraudulent companies and a case in which over 10,000 policemen were found inducted as personal guards by politicians, bureaucrats and their kin.

The Patna lawyer has never been nominated to any government panel, something that would have ensured him a fixed income. "I don't mind. My children have done very well academically and my wife Sumitra has helped me remain focused and motivated. That is my biggest asset," says Gupta. And he resumes his crusade. ■